

STATE OF NEW YORK

1236--A

2025-2026 Regular Sessions

IN SENATE

January 8, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to ensuring the public has virtual access to public service commission proceedings and may file documents electronically

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 28 to read as follows:

§ 28. Virtual access by the public to commission proceedings and electronic filing of documents. 1. As used in this section:

(a) "Document" shall include, but not be limited to, oral and written testimony, exhibits, interrogatories, and motions, briefs, comments, rulings, orders and any other materials filed in or generated as part of a proceeding.

(b) "Proceedings" shall mean any formal or informal matter, case, rulemaking, rate proceeding, generic proceeding, or any other action of the commission or the department or any component of a proceeding that may result in decisions by the commission or recommendations to the commission. Such term shall include evidentiary hearings conducted pursuant to section sixty-six of this chapter.

2. The commission shall provide for virtual and in-person access and participation for all proceedings regarding gas, electric, combination gas and electric, and water utilities. In the case of settlement negotiations, virtual and in-person access and participation shall be limited to persons admitted as parties and who subscribe to the applicable commission rules and standards governing confidentiality.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 3. The commission and administrative law judges shall accept electron-
2 ic submission of documents in all proceedings and physical copies shall
3 not be required. A filing party shall submit documents in an alternative
4 format only upon certification that electronic submission is not practi-
5 cable. Such documents shall be in a form and manner as prescribed by the
6 commission.

7 § 2. This act shall take effect on the one hundred twentieth day after
8 it shall have become a law. Effective immediately, the addition, amend-
9 ment and/or repeal of any rule or regulation necessary for the implemen-
10 tation of this act on its effective date are authorized to be made and
11 completed on or before such effective date.